

Cause No. _____

(1)

In the Matter of

§ In the

§

(2)

Maria-Alejandra O'Shaughnessy-Whitfield

§

County, Texas

(3)

(4)

Petition for Order of Nondisclosure

Under Section 411.0727

Maria-Alejandra O'Shaughnessy-Whitfield (5) ("Petitioner") respectfully petitions the court for an order of nondisclosure under Government Code Section 411.0727 for the offense detailed below.

1. Completion of Veterans Treatment Court Program

Petitioner was arrested for, charged with, convicted of, or placed on deferred adjudication community supervision for the offense of _____ (6) in Criminal Cause No. _____ (7). As a result of the offense, Petitioner entered and successfully completed a veterans treatment court program on _____ (8). Evidence of Petitioner's completion of the program _____ (9) attached.

2. Petitioner Satisfies the Requirements of Government Code Section 411.0727

Petitioner satisfies the requirements of Section 411.0727, Gov't Code, in that
Petitioner:

- Successfully completed the veterans treatment court program;
- Did not enter into the veterans treatment court program as a result of a conviction of an offense involving the operation of a motor vehicle while intoxicated;
- Has never been previously convicted of any of the offenses listed in Article 42A.054(a), Code of Criminal Procedure, which includes the following:
 - Section 15.03, Penal Code (Criminal Solicitation), if the offense is punishable as a first degree felony;
 - Section 19.02, Penal Code (Murder);
 - Section 19.03, Penal Code (Capital Murder);
 - Section 20.04, Penal Code (Aggravated Kidnapping);
 - Section 20A.02, Penal Code (Trafficking of Persons);
 - Section 21.11(a)(1), Penal Code (Indecency with a Child);
 - Section 22.011, Penal Code (Sexual Assault);
 - Section 22.021, Penal Code (Aggravated Sexual Assault)
 - Section 22.04(a)(1), Penal Code (Injury to a Child, Elderly Individual, or Disabled Individual), if the offense is punishable as a first degree felony and the victim of the offense is a child;
 - Section 29.03, Penal Code (Aggravated Robbery);
 - Section 30.02, Penal Code (Burglary), if the offense is punishable as a first degree felony under Subsection (d) of that section and the actor committed the offense with the intent to commit a felony under Section 21.02 (Continuous Sexual Abuse of Young Child or Children), 21.11 (Indecency With a Child), 22.011 (Sexual Assault), 22.021 (Aggravated Sexual Assault), or 25.02 (Prohibited Sexual

- Conduct) of the Penal Code;
- Section 43.05, Penal Code (Compelling Prostitution);
- Section 43.25, Penal Code (Sexual Performance by a Child); and
- Chapter 481, Health and Safety Code (Texas Controlled Substances Act), for which punishment is increased under Section 481.140 of that Code (Use of Child in Commission of Offense) because of the use or attempted use of a child in the commission of the offense, or under Section 481.134(c), (d), (e), or (f) of that Code (Drug-free Zones) because of a previous conviction of an offense for which punishment was increased under any of those subsections;
- Has never been previously convicted of a sexually violent offense, as defined by Code of Criminal Procedure Article 62.001(6);
- Was not convicted of any felony offense between the date that Petitioner successfully completed the veterans treatment court program and the second anniversary of that date; and
- Has waited a minimum of two years following Petitioner's completion of the veterans treatment court program before filing this petition.

3. Petitioner Satisfies the Requirements of Sec. 411.074, Government Code

Petitioner satisfies the requirements of Section 411.074 of the Government Code in that:

- Petitioner was not convicted of or placed on deferred adjudication for another offense (*do not include traffic offenses punishable by fine only*) between the date that Petitioner started the veterans treatment court

program and the date that Petitioner completed the two-year waiting period following successful completion of the program;

- Petitioner was not and has not ever been previously convicted of or placed on deferred adjudication for any of the following:

(A) An offense requiring registration as a sex offender under Code of Criminal Procedure Chapter 62;

(B) an offense under Penal Code Section 20.04 (Aggravated Kidnapping);

(C) An offense under any of the following sections of the Penal Code:

- Section 19.02 (Murder);
- Section 19.03 (Capital Murder);
- Section 20A.02 (Trafficking of Persons);
- Section 20A.03 (Continuous Trafficking of Persons);
- Section 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual);
- Section 22.041 (Abandoning or Endangering a Child);
- Section 25.07 (Violation of Court Orders or Conditions of Bond in a family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case);
- Section 25.072 (Repeated Violation of Certain Court Orders or Conditions of Bond in family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case); or
- Section 42.072 (Stalking); and

(D) Any other offense involving family violence, as defined by Family Code Section 71.004; and

- The court has not made an affirmative finding that the offense for which the order is requested involved family violence, as defined by Family Code Section 71.004.

4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure Under Section 411.0727, Gov't Code

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.0727 if the person satisfies the requirements of Sections 411.0727 and 411.074 of the Code.

As indicated above, Petitioner satisfies the requirements of both sections.

5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice

Issuance of an order is in the best of justice.

6. The Fee to File the Petition has been Paid or Otherwise Satisfied

Filing fees and court costs are required upon filing this petition. Alternatively, a petitioner may submit a *Statement of Inability to Afford Payment of Court Costs* if the petitioner is unable to pay the required fees and costs.

Petitioner has included ⁽¹⁰⁾

☐ the required filing fees and court costs.

☐ a Statement of Inability to Afford Payment of Court Costs.

7. Prayer for Relief

Petitioner asks the Court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.0727.

Respectfully submitted,

(11)

Signature

(12)

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name

(13)

Address

(14)

City, State, Zip

(15)

(361) 555-0199 ext. 4417

Telephone Number

Cause No. _____

In the Matter of

§ In the

§ _____

Maria-Alejandra O'Shaughnessy-Whitfield

§ _____ County, Texas

Order of Nondisclosure **Under Section 411.0727**

On _____, the Court considered Petitioner's petition for an order of nondisclosure under Government Code Section 411.0727.

The State was given notice of the petition and an opportunity to request a hearing.
The State

☐ requested a hearing.

☐ did not request a hearing.

The Court

☐ conducted a hearing on _____.

☐ did not conduct a hearing.

After consideration and a hearing, if a hearing was held, the Court **FINDS** that Petitioner entered the veterans treatment court program for the offense(s) of _____,

as charged in Criminal Cause No. _____ and that Petitioner did not enter the program as the result of a conviction for an offense involving the operation of a motor vehicle while intoxicated.

The Court **FURTHER FINDS** that Petitioner is entitled to file the petition and issuance of the order is in the best interest of justice.

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information related to the offense(s) for which Petitioner entered the veterans treatment court program.

IT IS FURTHER ORDERED that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to those individuals and agencies listed in Government Code Section 411.076(a).

IT IS FURTHER ORDERED that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter “DPS”) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15th business day after the order issues, in accordance with Government Code Section 411.075(a).

IT IS FURTHER ORDERED that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

IT IS FURTHER ORDERED that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

IT IS FURTHER ORDERED that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on _____.

Judge Presiding

Court/County

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY OF THE PETITION

READ THIS FIRST: YOU MAY NOT NEED THIS PAGE.

Government Code Sec. 411.0745(e) makes THE COURT responsible for giving the State notice of your petition and an opportunity to request a hearing, and the committed record states that you should not be charged for that notice. You are not the one who serves the State.

OCA instructions nonetheless direct a petitioner to show proof that the district attorney received a copy of the petition, and some counties expect it. ASK THE CLERK OF THE COURT YOU ARE FILING IN whether that county wants this. If it does not, leave this page out.

Cause No.:

Court and county:

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that a copy of my Petition for an Order of Nondisclosure under Government Code Sec. 411.0727 was delivered to the district attorney as follows:

District attorney - name and office:

.....

Address:

.....

How it was delivered:

Date the district attorney received it:

.....

Maria-Alejandra O'Shaughnessy-Whitfield

Date:

(You sign and date this when the copy has actually been delivered. Nothing on this page is signed or dated for you, and no district attorney's name or address is printed here: the platform holds none for any Texas county and does not guess one.)

Route: obligation:track-only:TX:tx_nd_veterans_court

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / Mi nombre legal completo es
Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / Mi fecha de nacimiento es
1972-12-31

Month Day Year / Mes Día Año

- My address is / Mi dirección es

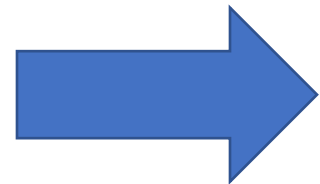
Home / Domicilio 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Mailing / Dirección Postal

- My phone number / Mi número telefónico (361) 555-0199 ext. 4417

- My email I check often / Mi correo electrónico que reviso con frecuencia
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

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Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para
_____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

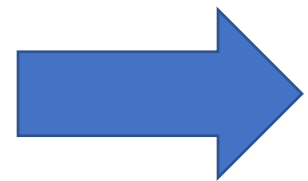
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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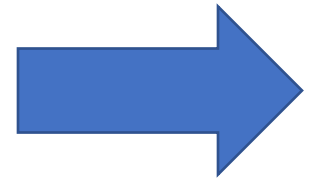
Pase a la siguiente página

10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

Go to next page



Pase a la siguiente página

Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

Go to next page



Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

➤ Maria-Alejandra O'Shaughnessy-Whitfield

Your printed name

Su nombre en letra de molde

➤

Your signature

Su firma

The notary fills out this section.

El Notario llena esta sección.

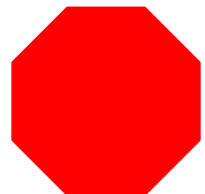
➤

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



FILING INSTRUCTIONS, WHAT IT COSTS, AND WHAT THE ORDER DOES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

BEFORE ANYTHING ELSE: THERE MAY BE A STRONGER REMEDY, AND IT IS FREE.

The committed record for this route treats the overlap with EXPUNCTION as decisive, and as routing logic rather than an optimisation. A veterans treatment court dismissal may also support expunction under Code of Criminal Procedure art. 55A.053(a)(2)(A), with the streamlined 30-day order under art. 55A.203 AND NO FEE. Expunction is the STRONGER remedy because it DESTROYS the record rather than sealing it. The committed record also records, as a point where self-help ends, that the expunction route has not been tested first. Ask about expunction before you spend a filing fee on this.

WHERE THIS IS FILED. File the petition with the CLERK OF THE COURT THAT SENTENCED YOU or placed you on community supervision. That clerk forwards it to the court. This is NOT the county of arrest, and the committed record calls that the single biggest venue difference from expunction - if you are pursuing both, they may be two different courts. Under Government Code Sec. 411.0745(a) you may file in person, electronically or by mail. OCA instructions say that in most courts a proposed order must be submitted with the petition, which is why the proposed order is in this packet.

ONE OFFENCE, ONE ORDER. An order of nondisclosure applies to a single offence. If you want more than one offence sealed, that takes more than one order.

WHAT IT COSTS - AND THE NUMBER YOU SHOULD IGNORE.

Government Code Sec. 411.0745(b) says the petition must be accompanied by payment of a fee THAT GENERALLY APPLIES TO THE FILING OF A CIVIL CASE. Read carefully, that subsection sets the TYPE of fee, not an amount: there is no flat statutory figure for a petition-based nondisclosure, and your county's civil filing fee schedule governs. OCA instructions describe the total as TYPICALLY ABOUT \$280, VARYING BY COUNTY, and tell you to call the clerk.

SO CALL THE CLERK OF THE COURT YOU ARE FILING IN and ask what the civil filing fee is there, before you go.

NOW THE NUMBER TO IGNORE: \$28. You may have read that an order of nondisclosure costs \$28. THAT FIGURE IS NOT YOURS. It belongs only to the no-petition route under Government Code Sec. 411.072(c), and the committed record states in terms that it is not a filing fee at all. This is a petition route under Sec. 411.0727. Do not arrive at the clerk's window with \$28.

IF YOU CANNOT AFFORD IT. Paragraph 6 of the petition lets you choose between paying the fees and costs and filing a STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS under Texas Rule of Civil Procedure 145. That Statement is in this packet, on the statewide bilingual form approved by the Supreme Court of Texas in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK, so you are entitled to it whether or not you use the copy here.

The Statement is sworn under penalty of perjury. Fill it from your own records - pay statements, benefit letters, bills - and not from memory. Nothing on it is filled in for you except your own name, date of birth, address, telephone number and email, because the platform holds no financial fact about anyone.

WHO GIVES NOTICE TO THE STATE - AND IT IS NOT YOU. Under Sec. 411.0745(e), on receipt of your petition THE COURT provides notice to the State and an opportunity for a hearing. The committed record states that you should not be charged for that notice. OCA instructions do direct a petitioner to show proof that the district attorney received a copy, and some counties expect it, which is why this packet includes a proof-of-delivery page marked CONDITIONAL. Ask the clerk whether that county wants it.

WILL THERE BE A HEARING? A hearing is required UNLESS the State does not request one before the 45th day after receiving notice AND the court finds that you are entitled to file the petition and that issuing the order is in the best interest of justice. So: if the State stays silent for 45 days and the court makes those findings, there may be no hearing at all.

NOTARIZATION. Subchapter E-1 does not require the petition to be notarized. County practice may differ. Ask the clerk.

THE WAITING PERIOD. This section uses one period: file on or after the SECOND ANNIVERSARY of the date you SUCCESSFULLY COMPLETED the veterans treatment court programme. Get the record that states that completion date and calculate from the date the record actually states, not from memory.

AND A CONDITION THAT RUNS THROUGH THOSE TWO YEARS: a FELONY CONVICTION at any time between completion and the second anniversary defeats this route. The petition asserts you had none.

THE ONE THING THIS SECTION WILL NOT COVER. Under Sec. 411.0727(e) this section is NOT available if you entered the veterans treatment court programme as a result of a conviction for an offence involving THE OPERATION OF A MOTOR VEHICLE WHILE INTOXICATED. The petition asserts you did not, and the proposed order asks the judge to FIND it. If that is how you came into the programme, this is the wrong route and you should get advice.

WHAT THE ORDER ACTUALLY DOES - AND WHAT IT DOES NOT. Nondisclosure is SEALING, not expunction. The order prohibits criminal justice agencies from disclosing the record to the public, and the information is still disclosed to the individuals and agencies listed in Government Code Sec. 411.076(a). The clerk sends the order to the DPS Crime Records Service; DPS forwards it to the agencies in Sec. 411.075(b); and any person, agency or entity holding the information seals it no later than 30 business days after receiving it, under Sec. 411.075(d). The record is not destroyed and you should never say it does not exist.

WHEN TO STOP AND GET HELP INSTEAD.

The committed track registry for this route records these as the points where self-help ends, in its own words:

- Any family violence finding or family violence allegation anywhere in the record.
- Any prior conviction or deferred adjudication other than a fine-only traffic offence, where the target section carries a first-time-offender condition.
- The prosecutor opposes the petition or requests a hearing.
- Any dispute about whether the sentence, fines, costs or restitution were completed.
- Immigration consequences.
- Any question whether the offence was violent or sexual in nature, which is a court determination under Gov't Code 411.0735.
- The expunction route under art. 55A.053(a)(2)(A) has not been tested first.

This packet adds five more of its own, taken from the assertions the forms in it actually make:

- You entered the veterans treatment court programme as a result of a conviction for an offence involving the operation of a motor vehicle while intoxicated. Sec. 411.0727(e) puts that outside this section, and the proposed order asks the judge to find the opposite.
- You have ever been convicted of any offence listed in Code of Criminal Procedure art. 42A.054(a) - the list the petition prints in full on its pages 2 and 3.
- You have ever been convicted of a sexually violent offence as defined by Code of Criminal Procedure art. 62.001(6).
- You were convicted of any felony between the date you completed the programme and the second anniversary of that date.
- You have ever been convicted of, or placed on deferred adjudication for, any offence on the Sec. 411.074 list the petition prints on its page 4 - a Chapter 62 registerable offence, aggravated kidnapping, murder, capital murder, trafficking or continuous trafficking of persons, injury to or abandoning or endangering a child, elderly or disabled individual, violation or repeated violation of certain court orders, stalking, or any other offence involving family violence.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63. It establishes the disposition and shows every other conviction and deferred adjudication the petition asks you to swear about.
- The record of your successful completion of the veterans treatment court programme - the clerk of the court that placed you in the programme, or the programme itself. It establishes the route and the date the two-year period runs from.

Route: obligation:track-only:TX:tx_nd_veterans_court